

Department of Public Works and Highways

Contract ID :24A00153

Contract Name: Construction/Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Construction of Flood Control Structure along Aringay River, Barangay Halog East, Tubao, La Union

CONTRACT AGREEMENT

THIS AGREEMENT, made this _____ day of MAR 14 2024, between Department of Public Works and Highways-Regional Office 1 (DPWH-RO1) of Aguila Road, Sevilla, City of San Fernando, La Union (hereinafter called the "Entity") and Rodekom General Construction and Enterprise of Belantian, Tabio, Mankayan, Benguet (hereinafter called the "Contractor").

WHEREAS, the Entity is desirous that the Contractor execute Construction/Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Construction of Flood Control Structure along Aringay River, Barangay Halog East, Tubao, La Union with Contract ID 24A00153 (hereinafter called "the Works") and the Entity has accepted the Bid for One Hundred Forty Million Two Hundred Seventy Four Thousand Four Hundred Eighty One Pesos and Forty Eight Centavos (Php140,274,481.48) by the Contractor for the execution and completion of such Works and the remedying of any defects therein.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.

2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as part of this Agreement, viz.:

a. Philippine Bidding Documents (PBDs);

- i. Drawings/Plans;
- ii. Specifications;
- iii. Bill of Quantities;
- iv. General and Special Conditions of Contract;
- v. Supplemental or Bid Bulletins, if any;

b. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

c. Performance Security;

d. Notice of Award of Contract and the Bidder's conforme thereto; and

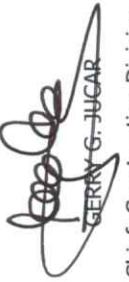
e. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.

3. In consideration for the sum of One Hundred Forty Million Two Hundred Seventy Four Thousand Four Hundred Eighty One Pesos and Forty Eight Centavos (Php140,274,481.48) or such other sums as may be ascertained, Rodekom General Construction and Enterprise agrees for the execution and completion of the works in accordance with his/her/its Bid.

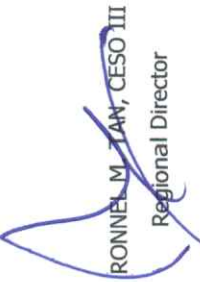
4. The DPWH-Regional Office I agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

Subject to the provisions of Executive Order
No. 91, s. 2019


DEXTER D. LOMBOY
Accountant IV


GERNY G. JUGAR
Chief, Construction Division


BRANDY D. ABEJA
General Manager


RONNEL M. TAN, CESO III
Regional Director

Rodekom General Construction and
Enterprise

Department of Public Works and Highways

Contract ID :24A00153

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IN WITNESS WHEREOF, the parties hereto set their respective hands on the day, month and year first above written.

PROCURING ENTITY:

Represented by:


RONNEL M. TAN, CESO III
Regional Director

Witnessed by:


GERRY G. JUCAR
Chief, Construction Division

CONTRACTOR:

Represented by:


BRANDY D. ABEYA
General Manager

Subject to the provisions of Executive Order No. 91, s. 2019


DEXTER D. LOMBOY
Accountant IV

By:

RONNEL M. TAN, CESO III
Regional Director

BRANDY D. ABEYA
General Manager

GERRY G. JUCAR
Chief, Construction Division

DEXTER D. LOMBOY
Accountant IV

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REPUBLIC OF THE PHILIPPINES)
CITY OF San Fernando) S. S.
PROVINCE OF La Union)

ACKNOWLEDGEMENT

BEFORE ME, Notary Public and in the Province of La Union personally appeared RONNEL
M. TAN with DPWH Employee No. 86F0041, in his Official capacity as Regional Director,
Department of Public Works and Highways Region I, representing the Republic of the
Philippines and BRANDY D. ABEYA with CTC No. 03318864 issued on January 2, 2024 issued
at Belantian, Tabia, Mankayan, Benguet issued known to me and to me known to be the
same persons who executed the foregoing CONTRACT AND AGREEMENT and they
acknowledged to me that the same is their true acts and deeds for and behalf of the Parties
they represent.

This instrument consists of Three (3) pages, including this page of which the
ACKNOWLEDGEMENT is written, duly signed by the contracting parties and their witnesses
at the left margin and above their typewritten.

IN WITNESS WHEREOF, I have hereunto affixed my signature and seal of office this _____
day of MAY 14 2024 at San Fernando City, La Union.

Notary Public
ATTY. GRACE L. BRAGANZA, CPA
AGB LEGAL AND BUSINESS SOLUTIONS
#21 Quezon Avenue, Sevilla, San Fernando City, La Union
Notary Public for and in the City of San Fernando, La Union
Commission No. 152-2023, Valid Until 12/31/2025
Roll of Attorneys No. 72769
Until Dec 31, 20
PTR No. _____
Professional Tax Receipt - CY 2024 No. 375608, 12/27/2023
MCLR Compliance No. VI 0019816, Valid Until 04/14/2025
Issued on _____

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